DUDZAI ANNAH MOYO (NEE MPOFU)
versus
KUMBUDZO NYAKE CYRIL MOYO

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE, 3, 9, 12 & 16 February, & 26 May 2026

Matrimonial Summons

T Kabuya for Plaintiff
MM Sachikonye for Defendant

TSANGA J

Marriage as a union between two people creates rights, responsibilities, and expectations between the spouses. It is common to expect cooperation in areas such as finances, household management, caregiving, and decision-making. A marriage may become short-lived where there is a lack of shared effort in meeting some of these expectations, particularly those relating to finances. For modern day women who already have a double shift in child rearing as well as income generation towards a family's survival, this absence of shared effort financially is often the drop that makes the bucket over flow.

The parties in this divorce matter are agreed that the marriage has irretrievably broken down and that the centre can no longer hold. The crisp issue arising for determination is the defendant's counter claim relating to whether; in granting the divorce as prayed for by the plaintiff, the defendant should receive a share of the value of the immovable property acquired entirely by the plaintiff before the marriage. In his plea the defendant initially claimed a 20% share but in his closing submissions he reduced this to a claim of 5% share of the value of the property.

Although the parties remain legally married, they only cohabited as husband and wife for less than a year before separating permanently. The defendant bases his claim on alleged direct and indirect contributions to the property.

The Plaintiff's Evidence

The plaintiff, Dudzai Mpofu (Dudzai) testified that she married the defendant, Kumbudzo Moyo (Kumbudzo), on 20 August 2020. By January 2021, she had asked him to

move out and, although he briefly returned, by May 2021 the parties had permanently ceased living together as husband and wife. Efforts at reconciliation failed.

With regard to the immovable property in dispute, she stated that she acquired the land in 2015 through a developer and commenced construction of a house thereon. She initially built a cottage before proceeding with the main house the following year. By 2019 the house had been substantially completed, save for the fitting of the kitchen, built-in cupboards, the garage door, and a shower cubicle. She is yet to take transfer.

It was during that same year that she started communicating with Kumbudzo, who was then based in Mozambique. They began dating in May 2019, and she later visited him in Mozambique for a few days. He too visited her in Zimbabwe.

In January 2020, while they were still dating and while Kumbudzo was in South Africa attending to his own business affairs, she requested him to obtain quotations for an electronic garage door. He did so and indeed purchased the garage door, later sending her receipts reflecting the expenditure incurred. The garage door cost approximately US$1,300.00. According to the Dudzai, he owed her US$500.00 at the time and indicated that he was off setting his debt against the purchase price of the garage door. In respect of the balance he had expended, she produced documentary evidence showing that he instructed her to utilise what she now in turn owed him towards the total he paid for the door, by paying builders working at his parents' residence in Marlborough, where he was supervising the construction of a perimeter wall. She complied with those instructions.

He had particularly travelled to Zimbabwe to visit her at the onset of the Covid-19 pandemic in 2020. According to her, when she urged him to return to Mozambique since he needed to be at work, he insisted on remaining because she had fallen pregnant and he wished to support her. He moved in with her around February 2020 during the Covid-19 lockdown period. They thereafter began living together at her place and eventually married in August 2020.

As regards the shower cubicle, which Kumbudzo also relied upon as evidence of his contribution, she stated that it had been bought as a gift to celebrate the completion of her house while they were still courting. Apart from these two items, she maintained that he played no meaningful role in the acquisition or improvement of the property. Instead, he moved into her home with his child, and she soon realised that she was effectively supporting him financially.

They frequently quarrelled because the defendant was not providing for the family. At the time, she was unemployed and the household survived largely on rental income from her other property. The financial strain intensified because she was also paying school fees for the defendant's child, who had come to live with them. In fact, the situation soon turned into one of those where one is left to wonder "who on earth did I marry?" Debt collectors from Mozambique began looking for the defendant. She produced WhatsApp messages allegedly sent to her directly, showing that he was being pursued by creditors in Mozambique. She had never seen his salary slip and only knew that he worked in Mozambique and that he was involved in the fuel business. It became a substantial burden for her to care for him, his child, and her own children. His only regular contribution was payment for the DSTV subscription so that he could watch television.

It was within this frustrating context that she asked him to move out, approximately six months into the marriage. When reconciliation efforts failed to improve matters, she asked him to leave permanently in May 2021, although she conceded under cross-examination that since the marriage has yet to be legally dissolved, they remain married. She also emphasised during cross-examination that she has solely cared for their child, now five years old, and that Kumbudzo last saw his child when he was two years old.

Her second witness, George Munkoma, a construction professional who assisted with the house plans and supervised the building works, corroborated her evidence regarding the timeline of construction and confirmed that the house had largely been completed before the defendant entered the picture.

Her third witness, Denmore Tafadzwa Tsopotsa, who carried out electrical work at the property, likewise corroborated the evidence concerning the stage of completion of the house by the time she met the defendant. Whilst there were some minor differences in detailing finishing items to be completed, the primary take away was that the house was virtually complete by 2019 when Kumbudzo came into Dudzai's life.

The Defendant's Evidence

Kumbudzo's own evidence largely corroborated the plaintiff's account regarding the period which they began cohabiting prior to their marriage. He testified that at the time he was employed by a Dubai-based company operating in Mozambique and was earning a salary. He stated that he relocated to Zimbabwe around February 2020 after the company withdrew from Mozambique. According to him, he remained in Zimbabwe because the

Dudzai feared having a third child out of wedlock and facing a difficult pregnancy alone. He stated that he consciously chose to support her and did not recall her insisting that he return to Mozambique.

He attributed the breakdown of the marriage not to financial difficulties but to challenges associated with blending two families. However, under cross-examination, he conceded that the consultancy position he later obtained only commenced in February 2021, by which stage the parties had already experienced an initial separation she had asked him to move to his parents' home. He further testified that he obtained two additional consultancy assignments later that same year, after the parties had separated.

Regarding his direct contributions, he referred to the purchase of the garage door, although he sought to minimise the evidence showing that he had effectively recovered the money expended through the arrangement described by the Dudzai. He also relied upon the purchase of the shower cubicle as a contribution. In addition, he stated that he had installed a water tank at his in-laws' rural home although he did not expect to be reimbursed.

As for his contribution to family life, he testified that he bought food for the household and assisted with caring for the baby during the period they lived together. He further stated that after separation he had placed their son on medical aid, although he conceded that he never informed the plaintiff of this arrangement, and, as a result, the medical aid was never utilised when required. He also admitted that he had not made any financial contribution towards the upkeep of the child since 2022, attributing this largely to the breakdown in communication between the parties and the fact that the plaintiff had blocked communication with him.

Under cross-examination, he admitted that he had been unemployed from 2020 until February 2021. He further conceded that although he eventually received payment from his first consultancy sometime in March or April 2021, he had no documentary proof showing that he had paid any money to the plaintiff from those earnings before she asked him to move out permanently in May 2021.

Factual and Legal Analysis

The central question is whether the defendant has established a legal and equitable basis for an award of 20% or even 5% being his reduced claim of the plaintiff's immovable property notwithstanding that the property was acquired, and substantially developed before

the marriage. On the facts presented, the stronger legal conclusion is that the defendant is not entitled to a share because the evidence does not establish meaningful direct or indirect contributions sufficient to justify redistribution of a premarital asset.

Under our law, particularly the principles developed under section 7 of the Matrimonial Causes Act [*Chapter 5:13*], upon divorce the court exercises a broad discretion to achieve a just and equitable distribution. The court is not restricted to strict proprietary ownership. It considers factors such as the duration of the marriage; the direct and indirect contributions of each spouse; the parties' needs and obligations; the standard of living during the marriage; whether property was acquired before or during the marriage; and the extent to which one spouse contributed to the preservation or improvement of the other's assets. The duration of the marriage is also a critical factor to be considered.

However, although non-financial contributions are recognised, redistribution is not automatic merely because parties contracted a marriage. The claimant spouse must demonstrate contributions of substance that justify interference with the other spouse's proprietary rights.

A number of features of the factual evidence that was placed before this court strongly militate against the defendant's claim. First, the immovable property was acquired exclusively by the plaintiff long before the marriage. It therefore fell into the category of her property. There was nothing else in the kitty that constituted "his" property or "their" property. See *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S). The plaintiff purchased the stand in 2015 and commenced construction shortly thereafter. By 2019, before she even met the defendant, the house was substantially complete. Independent witnesses, namely the construction supervisor and electrician, corroborated this timeline. Their evidence objectively supports the plaintiff's assertion that the property was effectively completed prior to the relationship.

The remaining outstanding works were comparatively minor finishing items: the kitchen fittings, built-in cupboards, garage door, and shower cubicle. All this substantially weakens any assertion that the defendant materially contributed to the acquisition or development of the property itself.

Second, the marriage and cohabitation were exceptionally short. Although the parties formally married in August 2020, they only cohabited meaningfully for a matter of months before the first separation in January 2021 and permanent separation in May 2021. Courts are generally reluctant to redistribute substantial premarital assets after a very brief marriage

unless there is compelling evidence of significant contribution or sacrifice by the claimant spouse. Where the marriage lasts for a short period of time, without direct contributions one would not be entitled to a share in the matrimonial property. See *Masiwa* v *Masiwa* 2007(1) ZLR 167(S); *Ranguna* v *Ranguna* HH 234/18.

Third, the evidence of direct financial contribution is minimal and largely neutralised by the surrounding circumstances. The token contributions allegedly made by the defendant in this instance were also done before the parties even got married. Together they did not acquire any property. The defendant principally relies on the purchase of the electronic garage door; the purchase of a shower cubicle; and general household support. Yet the plaintiff produced evidence that: the garage door cost approximately US$1,300; the defendant already owed her US$500; the balance was effectively reimbursed to him when he instructed her to redirect equivalent funds toward builders working at his parents' residence. This court accepts this evidence by the plaintiff as the communication submitted did speak to an offset which substantially eliminates the alleged financial contribution. In substance, the defendant merely facilitated procurement rather than made a net contribution to the property.

As for the shower cubicle, the plaintiff characterised it as a gift celebrating completion of the house while they were still dating. The present evidence is insufficient even for the purpose of reimbursing him for the shower cubicle. In any event, he showered there whilst living under the plaintiff's care. Even accepting it as a contribution, it remains modest in value relative to the total property and insufficient to justify a 20% or even a modest 5%proprietary award.

Fourth, the evidence concerning indirect contributions does not support a redistribution order of any kind. Indirect contributions may include homemaking, caregiving, emotional support, or enabling the other spouse to accumulate wealth. However, the evidence here points in the opposite direction. The plaintiff testified that she was effectively supporting the defendant and his child during the relationship using rental income from her own property despite being unemployed herself. She paid school fees for his child and maintained the household. The defendant admitted prolonged unemployment from 2020 until February 2021 and conceded he could not prove having contributed money from his consultancy earnings before final separation.

The defendant's asserted household contributions during the short time they were together - buying groceries, assisting with the baby, and paying DSTV, appear consistent

with ordinary incidents of cohabitation rather than contributions giving rise to a proprietary entitlement in a **premarital** immovable asset.

Fifth, the defendant's post-separation conduct weakens the equitable basis for his claim. The plaintiff has solely maintained the parties' child since separation. The defendant admitted making no financial contribution toward the child's upkeep since 2022. Although he allegedly placed the child on medical aid, he conceded that he never informed the plaintiff, rendering the arrangement practically useless. A court exercising equitable jurisdiction under section 7 is entitled to consider the overall justice of the case, including whether the claimant spouse has fulfilled ongoing familial responsibilities.

The defendant has argued that marriage is an economic partnership and that even short marriages can generate rights. He further contended that he relocated from Mozambique to support the plaintiff during pregnancy; he contributed companionship and domestic support; he made some improvements to the property; and his contributions should not be assessed purely monetarily. While these submissions have some force, they do not justify a share because the contributions proved are disproportionately small when measured against the value of the property and the plaintiff's overwhelmingly dominant financial contribution. The premarital acquisition of the asset cannot be ignored as it generally points to that asset being separate property more so against the very short duration of the time the parties actually lived as husband and wife.

Accordingly, this court concludes that the defendant has failed to establish either substantial direct contributions to the acquisition or improvement of the property. He has also failed to prove meaningful indirect contributions that would render it just and equitable to award him a 5% proprietary interest. The equities overwhelmingly favour the plaintiff retaining sole ownership of the immovable property. The defendant's claim is opportunistic when viewed against the brevity of the marriage, his limited proven contributions, and the fact that the property was substantially completed before the relationship commenced. The parties reached agreement, as encapsulated in a joint pre-trial conference minute, on issues of custody, access and maintenance. For completeness of the order, these are captured in the final order below.

In the circumstances the order is granted as follows:

Order

1. The parties be and are hereby divorced.

2. Custody of the minor child Darnell Zion Hwililani Moyo, born on the 9th of September 2020, is granted to the plaintiff.
3. The Defendant shall enjoy access rights to the minor child as follows;
    a. On the first two Saturdays of every month from 8 am to 6 pm.
    b. Every last two weekends of every month, picking the minor child from 8am on Saturdays and returning him on 5pm on Sundays.
    c. Every first two weeks of school holidays.
4. The defendant shall pay maintenance of US$200.00 per month with effect from the date of the granting of this order, on the condition that payment is suspended until the Defendant has secured employment. At that time, the Defendant shall begin paying maintenance monthly, and he shall also pay any arrears that will have accrued until that date.
5. The Defendant's counter claim to a share of the property known as 1167 Bannockburn Road, Mt Pleasant Heights, Harare is hereby dismissed.
6. Each party shall pay their own costs.

TSANGA J…….

Matlaw: Plaintiff's Legal Practitioners
Sachikonye Law Practitioners: Defendant's Legal Practitioners